

9:00 AM

Line 8

25-CIV-06050 MOIREEN MERRILL VS. CYRIL JOHNSON MANAGEMENT CO., A
CALIFORNIA CORPORATION

MOIREEN MERRILL
CYRIL JOHNSON MANAGEMENT CO.,
A CALIFORNIA CORPORATION

GREGORY P WONG
MAHTAB HAJIBABAEI

Defendant's Motion to Compel Petition for Arbitration and to Stay Litigation Until Arbitration is Complete

TENTATIVE RULING:

Petitioner's Notice of New Hearing Date filed on December 22, 2025, states that Department 20 is located in the Central Branch. However, Department 20 since has moved to the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

The Motion to Compel Petition for Arbitration and to Stay Litigation, Etc. (the "Motion") brought by Defendant J. Cyril Johnson Management Co. is DENIED.

Background

Per the allegations, Defendant hired Plaintiff on about August 16, 2008, as an apartment manager living on-site. Although Plaintiff was paid as an exempt employee, her duties and authority were those of a nonexempt employee. Plaintiff regularly worked overtime, but was not paid overtime nor even the minimum wage for all of the hours she worked.

On or about April 9, 2025, Plaintiff provided a statement to human resources supporting a coworker's claim that Defendant's owner, Mark Johnson, had inquired into the coworker's immigration status before the coworker was fired. Then, on about April 30, 2025, Plaintiff was involuntarily terminated as well. Defendant failed to pay her wages due at the time of termination, and to provide accurate wage statements.

Defendant brings the instant Motion to Compel Petition for Arbitration and to Stay Litigation Until Arbitration Is Complete (the "Motion") to ask the Court to compel Plaintiff to arbitrate this matter pursuant to California law (Code Civ. Proc., §§ 1281.2 & 1281.7), and pending arbitration, to stay this action (*id.*, § 1281.4).

The Motion Is Denied.

The governing statute provides, in pertinent part, that:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy *if it determines that an agreement to arbitrate the controversy*

exists, unless it determines that:

(Code Civ. Proc., § 1281.2, introductory paragraph.)

Defendant presents the Onsite Employment Agreement that is said to exist between the parties (Johnson-Nurnberg Decl., ¶ 7, & Exh. A), which it further declares to include the arbitration agreement (*id.*, ¶ 8, & Exh. A). Defendant declares that Plaintiff signed these agreements—while in fact, *only* the Plaintiff signed them. (*Id.*, p.10, in Exh. A.) Though the signature spaces for the Employer are dated one week earlier, the Employer’s signature spaces as to each agreement both are clearly blank. (*Ibid.*)

Thus, the Court cannot determine from the evidence presented that an actual agreement to arbitrate the instant controversy exists, requiring the motion to be DENIED. (Code Civ. Proc., § 1281.2.)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 9

25-CIV-07539 HAMID KHAZAELI VS. 21X CAPITAL LP, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Defendants' Demurrer to First Amended Complaint (C.C.P. § 430.10 & C.C. § 1714.10)

TENTATIVE RULING:

The Demurrer to the First Amended Complaint by Defendants David A. Brewer, et al. ("Defendants") is CONTINUED to January 15, 2027 at 9:00 a.m. in Department 20 (and replaces the anti-SLAPP motion in this case calendared for that date) so the court may first rule on Plaintiff's pending motion for leave to conduct limited discovery regarding the anti-SLAPP motion and then rule on Defendants' pending anti-SLAPP Motion. (See *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1293-1294 [a plaintiff cannot amend the pleading before the court rules on an anti-SLAPP motion], disagreed with on other grounds in *Barker v. Fox and Associates* (2015) 240 Cal.App.4th 333, 351, fn. 7; see also *Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992, 1005, citing *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073 [a plaintiff has no right to amend a cause of action that is dismissed pursuant to an anti-SLAPP motion because allowing leave to amend would completely undermine the anti-SLAPP statute (Code of Civil Procedure section 425.16)].)

No additional papers are to be filed and served by the parties regarding this Demurrer without leave of court.

The motion for leave to conduct limited discovery regarding the anti-SLAPP motion currently on calendar for August 7, 2026 at 9:00 a.m. is not changed.

The anti-SLAPP motion that was calendared for January 15, 2027, is ADVANCED to October 9, 2026, at 9:00 a.m. in Department 20.

No appearances are required, and this shall become the order of the Court by Minute Order.
